

Multiple Choice (10 marks)

1. The _____ School of jurisprudence maintains that the law is shaped by logic.
 - (a) Historical
 - (b) Analytical
 - (c) Command
 - (d) Sociological
2. What is the purpose of politics, according to Aristotle?
 - (a) To advance the interests of politicians.
 - (b) To produce virtuous citizens and encourage righteousness in individuals.
 - (c) To obtain power.
 - (d) To secure justice by abolishing slavery.
3. Why is there an increasing recognition that retribution is a fundamental element of punishment?
 - (a) Because rehabilitation of offenders presumes a recognition of the role of vengeance.
 - (b) Because the lex talionis is misguided.
 - (c) Because other justifications appear to have failed.
 - (d) Because revenge is anachronistic.
4. Hart's analysis of law distinguishes between
 - (a) Cause and effect
 - (b) Theory and fact
 - (c) Being obliged and having an obligation
 - (d) Corporeal and incorporeal rights
5. Which rule of jus cogens was the first to be accepted explicitly as such by the ICJ?
 - (a) The prohibition of the use of force
 - (b) The prohibition of torture
 - (c) The prohibition of genocide
 - (d) The principle of self-determination

True / False (10 marks)

Answer True or False

6. True or False: John Locke dismissed the idea of natural rights as irrelevant to governance.
7. True or False: Recognition is simply declaratory of statehood and does not determine the existence of a state.
8. True or False: Principles describe rights, while policies describe goals within Dworkin's framework of legal interpretation.
9. True or False: Leopold Pospisil identifies 'dispute' as one of the four essential elements manifested by law.
10. True or False: Olivecrona's argument is well-supported by extensive empirical evidence demonstrating the psychological basis of law.

Long Form Response (20 marks)

Answer each question with a clear and complete explanation.

11. Discuss Rousseau's assertion that the "Social Contract is not a historical fact but a hypothetical construction of reason." Analyze its implications for constitutional law and modern governance.
12. Discuss the implications of allowing a reservation to the definition of torture in the IC-CPR, analyzing whether it aligns with the treaty's object and purpose in contemporary legal practice.

End of Paper